

Sayeem Khan v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 2 April 2018 · Writ-C No. 11931 of 2018 · **Writ disposed; petitioners relegated to Clause 6.5.**

HEADNOTE

A writ disputing amounts raised in electricity bills is disposed of by leaving the consumers to the Clause 6.5 Supply Code remedy, without deciding the bills on merits.

FACTUAL SUMMARY

Sayeem Khan and two others filed Writ-C No. 11931 of 2018 in the Allahabad High Court against U.P. Power Corporation Ltd. and another. They disputed the amounts raised in electricity bills submitted by the Power Corporation. Counsel for the respondents appeared and pointed to the available internal remedy for such billing disputes under the U.P. Electricity Supply Code, 2005. The Division Bench heard the matter on 2 April 2018.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-dispute-relegation-to-6.5

HOLDING

Where consumers dispute the amounts raised in the licensee's electricity bills, the High Court may dispose of the writ by leaving it open to them to avail the remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005, without adjudicating the billed amounts. ¶ 1

PRINCIPLE TAGS

billing-objection-to-executive-engineer-under-6.5 A writ disputing amounts raised in electricity bills is disposed of by leaving the consumers to the Clause 6.5 Supply Code remedy, without deciding the bills on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE AMOUNTS RAISED IN THE ELECTRICITY BILLS

The Court did not examine the bills on merits and left the petitioners to Clause 6.5. ¶ 1